

\$50,000.00 (Bond). ACIC is informed and believes the Bond was in effect at the time of the occurrence of the event described herein. Cross-defendants made adverse and conflicting demands upon ACIC for the Bond. ACIC is uncertain if additional parties may intervene as a cross-defendant later in the proceedings. As a result of these claims against the Bond, and since ACIC is uncertain as to how much to pay to each claimant or to claimants in the future who may make demand upon its bond, on April 21, 2025, ACIC filed its cross-complaint for interpleader. ACIC has no interest in the controversies between the cross-defendants and its principal, and makes this motion to sever ACIC's connection to the disputed funds, and be discharged and dismissed from the action.

The motion to deposit bond is granted.

As to attorney's fees, the court has the discretion to award reasonable attorney fees "from the amount in dispute which has been deposited with the court." (Code Civ. Proc., § 386.6, subd. (a).) ACIC must deposit the funds with the court prior to obtaining an attorney's fees award from it. (*Wells Fargo Bank v. Zinnel* (2004) 125 Cal.App.4th 393, 400–03.) A review of the court's file reveals ACIC has not yet deposited bond funds with the court. As such, the request for attorney's fees is denied without prejudice.

2. M-CV-0092493 Wells Fargo Bank NA v. Santiago, Jazz

Motion for Judgment on the Pleadings

Plaintiff's request for judicial notice is granted.

The court may grant a motion for judgment on the pleadings in favor of a plaintiff where the complaint states facts sufficient to constitute a cause of action, and the answer does not state facts sufficient to constitute a defense to the complaint. (Code Civ. Proc., § 438, subd. (c)(1)(A).) The grounds for the motion must appear on the face of the challenged pleading, or be based on facts which the court may judicially notice. (*Id.* subd. (d).)

Preliminarily, while plaintiff's motion refers to a claim for breach of written contract, for breach of implied-in-fact contract, and for common counts, plaintiff's complaint in this action alleges breach of written contract and breach of implied-in-fact contract. The court will analyze this motion based on the causes of action included in plaintiff's complaint.

Here, plaintiff's complaint filed on June 18, 2025 alleges sufficient facts to support the cause of action for breach of implied-in-fact contract by showing that the parties entered into a contract, that the plaintiff performed the contract, and that the defendant breached the contract by failing to pay the plaintiff, resulting in monetary damage to the plaintiff. Defendant's answer filed on September 29, 2025 fails to deny any allegations within the complaint or raise a defense to the complaint. Further, the court granted an order deeming the truth of the matters specified in plaintiff's requests for admissions (set one) as admitted by written ruling on May 22, 2026, which supports a finding that plaintiff has alleged sufficient facts to support its cause of action. Judgment on the pleadings is appropriate in these circumstances and the motion is granted without leave to amend.

(Code Civ. Proc., § 438, subd. (c)(1)(A).) Judgment shall be entered in favor of plaintiff and against defendant in the amount of \$13,554.23 in damages together with costs of \$430.00 for a total of \$13,984.23.

3. S-CV-0049303 Nichols, Anthony J v. W1 Holdings

If oral argument is requested, it will be heard in **Department 32** by the Honorable Trisha J. Hirashima.

Defendant is advised the notice of motion must include notice of the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Motion to Quash

Defendant Donald Hubbard, III moves to quash service of summons in this consolidated action pursuant to Code of Civil Procedure section 418.10. Plaintiffs Anthony J. Nichols and Kristen Haff oppose the motion.

Preliminarily, the court observes defendant's moving papers fail to specify exactly which proof of service of summons he is referring to and often refers to information across multiple proofs of service collectively. Despite this irregularity, the court has spent considerable time with the proofs of service in the court's file to discern defendant's arguments.

Defendant presents evidence he was never personally served in this action and contends service by substitution purported to be on his father was ineffective. Defendant argues service by substitution is ineffective as it is unsupported by evidence of diligent efforts to personally serve defendant. Defendant characterizes the attempts to serve him by delivering papers to his father at a residence in Idaho and the proofs of service to memorialize these attempts as false, misleading, and fraudulent. The court has carefully reviewed six proofs of service filed on March 23, 2026 and, accepting the evidence defendant presented differentiating himself from his father as true, does not observe any false, misleading, or fraudulent information.

The proofs of service purporting to have served defendant Hubbard and defendant W1 Holdings, LLC (not a party to this motion) at 1017 L Street, Sacramento, CA 95814 appears to show proper service pursuant to Code of Civil Procedure section 415.20(c):

[I]f the only address reasonably known for the person to be served is a private mailbox obtained through a commercial mail receiving agency, service of process may be effected on the first delivery attempt by leaving a copy of the summons and complaint with the commercial mail receiving agency

(Code Civ. Proc., § 415.20, subd. (c).) This subdivision does not require evidence of diligence to personally serve a defendant and even specifies service in this manner may be effected "on the first attempt." (*Ibid.*)